

CHAPTER 51.

An Act to authorise the Board of Trade, in case of need, to take exceptional measures for preventing or remedying shortages in, or unreasonable increases in the price of certain articles of food or drink. [7th October 1931.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

Power to
make regu-
lations as to
foodstuffs.

1.—(1) If it appears to the Board of Trade, that by reason of the action of any persons in exploiting the present financial situation there is, or is likely to arise in Great Britain or in any part thereof, any shortage of or any unreasonable increase in the price of any article of food or drink of general consumption, the Board of Trade may by regulation make such provision as they consider necessary or expedient for the purpose of remedying or preventing that shortage or increase in price.

(2) Regulations made under this section may, without prejudice to the generality of the foregoing provision—

(a) confer or impose on any person or body of persons such powers and duties as the Board of Trade may consider necessary or expedient for effecting the purpose aforesaid and contain such incidental and consequential provisions as appear to the Board of Trade to be necessary or expedient for securing the effective exercise and discharge of the powers and duties of the Board and of any powers and duties so conferred or imposed as aforesaid; and

(b) provide for the trial by courts of summary jurisdiction, of persons guilty of offences against the regulations, so, however, that the maximum penalty which may be inflicted for any offence against any such regulations shall be imprisonment for a term of three

months, or a fine of five hundred pounds, or both such imprisonment and fine, together with the forfeiture of any articles in respect of which the offence was committed or of any profits accruing to the person committing the offence in respect of the transaction to which the offence relates, or the forfeiture of both such articles and such profits :

Provided that no such regulations shall alter any existing procedure in criminal cases, or confer any right to punish by fine or imprisonment without trial.

(3) Any regulations made under this Act shall be laid before each House of Parliament as soon as may be after they are made, and, if an Address is presented to His Majesty by either House of Parliament within the next subsequent twenty days on which that House has sat next after any such regulation is laid before it praying that the regulation may be annulled, it shall thenceforth be void, but without prejudice to the validity of anything done thereunder or to the making of any new regulation.

(4) As regards any regulation made under this Act neither the expiry of this Act, nor the revocation of the regulation, shall affect the previous operation thereof, or the validity of any action taken thereunder, or any penalty, forfeiture or punishment incurred in respect of any contravention thereof or failure to comply therewith, or any proceeding or remedy in respect of any such penalty forfeiture or punishment.

2.—(1) This Act may be cited as the Foodstuffs (Prevention of Exploitation) Act, 1931.

Short title,
extent and
duration.

(2) This Act shall not extend to Northern Ireland.

(3) This Act shall cease to have effect on the expiration of six months from the passing thereof.